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# Trump's dog whistles and prosecutions echo Nixon's racist strategy

Anyone who's observed the [Supreme Court](#) over the past few years knew it was pretty much assured that the conservative majority would [gut the Voting Rights Act](#) the first chance they got. But the anticipation made the Court's 6-3 decision in *Louisiana v. Goolsby* no less shocking and appalling for having been anticipated.

The conservative justices paved the way for the [massive redistricting of Southern states](#) that is already transpiring only days after the ruling. These actions will almost certainly eliminate most of the South's Black representation, leaving those states essentially where they were before the Civil Rights Movement.

After the Voting Rights Act was passed by Congress and signed by President Lyndon B. Johnson in 1965, Republicans set out to maintain and solidify control of the South. The operation went into full force in 1968 when historian and political scientist Kevin Phillips took note of Alabama Gov. George Wallace's success in embedding racist-coded "law and order" messages in his campaign for the Democratic nomination for president, and he persuaded GOP candidate Richard Nixon to follow suit. The GOP's "Southern Strategy" was born.

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As the historian Rick Perlstein laid out in "Nixonland," his epic history of the period, Phillips and Nixon understood something about the American cultural upheaval that most of the people in the media and elite institutions did not. White working-class and precarious middle-class voters were alarmed not only at the upending of the racial caste system but also at what they saw as an unraveling of society in general. The Vietnam War was raging, there were protests in the streets and their own kids were repudiating many of their values. The changes felt chaotic and overwhelming, so when Nixon promised "law and order," they embraced it. In this sense, the Southern Strategy was about much more than just the Southern states — and remains so today.

As Perlstein wrote in the opening pages, "The main character in Nixonland is not Richard Nixon. Its protagonist, in fact, has no name — but lives on every page. It is the voter who, in 1964, pulled the lever for the Democrat for president because to do anything else, at least that particular Tuesday in November, seemed to court civilizational chaos, and who, eight years later, pulled the lever for the Republican for exactly the same reason."

Despite the fact that [Donald Trump](#) thinks he invented the phrase "law and order," the truth is that virtually every Republican candidate for president and Congress has used that slogan in the 60 years since — and everyone has always known exactly what they meant by it. Trump, too, is especially gifted at exploiting the predilection of Republicans to come unraveled at the slightest hint of social change; he creates the chaos himself.

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But in another important way Trump's Southern Strategy is even more nefarious and blatant than Nixon's, and it's far older than the one Phillips imagined in the 1960s. The president is reaching back to the really bad old days of the late 19th and early 20th centuries for inspiration. As the Philadelphia Inquirer's Will Bunch [observed](#) on May 3, the Justice Department, which has had a tough time prosecuting revenge cases against the president's perceived enemies, has apparently realized that it would have more success bringing them in the solid Southern GOP states.

Bunch notes that the [recent case](#) brought against former FBI Director James Comey was [rejected by prosecutors](#) and the courts in Virginia, which has trended Democratic in recent elections. But it was taken up by [the very Trumpy U.S. Attorney](#) for the Eastern District of North Carolina without any reported qualms. (North Carolina is actually not a solid Southern state electorally anymore, but apparently it wasn't hard to find a grand jury willing to indict Comey in a ridiculous case that embarrasses even many MAGA legal experts.) Federal prosecutors were able to get an equally absurd case handed down [against the Southern Poverty Law Center](#) in Mississippi by fatuously claiming that because the organization had paid informants to infiltrate the Ku Klux Klan and other hate groups, it was supporting terrorism. Then there is what could be the biggest case of all: the Justice Department's [investigation of the Obama administration](#) in the Southern District of Florida for [allegedly violating Trump's rights](#) — by investigating him.

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The late Republican strategist Lee Atwater famously [laid out the Southern Strategy tactics](#) years ago when he said that, in the past, politicians could just scream racist epithets and that would be enough. But he realized the GOP needed to be more subtle as the years went by. The results were coded tropes involving "law and order," "welfare queens" and other veiled appeals that their racist base would understand, while not offending suburban whites who weren't comfortable with overtly crude rhetoric.

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Starting with Nixon, virtually all GOP politicians skillfully deployed that tactic keeping the coalition of big and small business, evangelicals and anti-communists in the tent alongside true believers in the South's "Lost Cause" myth. But Donald Trump is now on the verge of jettisoning that aspect of the strategy once and for all.

Over the weekend [Trump attacked](#) House Minority Leader Rep. Hakeem Jeffries, D-N.Y., as a "low I.Q. individual" and a "thug" who is a "danger to the country." In a message that's not what anyone would call subtle, the president also included a picture of Jeffries holding a baseball bat. That comes on top of Trump [slandering Minnesota Rep. Ilhan Omar](#), Somali-Americans and the entire population of Somalia, saying the country is ["filthy, dirty, and disgusting."](#) In these moments, Trump seems awfully close to unleashing a certain racial epithet, and we should not be surprised if he does so in the coming months.

As the Republican Party becomes more and more alienated from the white suburbs that no longer back its candidates — largely due to Trump's grotesque behavior — they are finding they no longer need to hide their true agenda. It looks like the old Confederacy is making another run at it — this

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time with a loud-mouthed New Yorker at the helm and a Supreme Court majority ready to do its dirty work.

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